

CHIEF JUSTICE
SUPREME COURT OF LIBERIA



JUDICIAL BRANCH
TEMPLE OF JUSTICE
MONROVIA, LIBERIA

IN THE HONOURABLE SUPREME COURT OF THE LIBERIA OF LIBERIA
SITTING IN ITS OCTOBER TERM, A.D. 2025.

BEFORE HIS HONOR : YAMIE QUIQUI GBEISAY, SR CHIEF JUSTICE
BEFORE HER HONOR : JAMESETTA H. WOLOKOLIE ASSOCIATE JUSTICE
BEFORE HIS HONOR : YUSSIF D. KABA..... ASSOCIATE JUSTICE
BEFORE HER HONOR: CEANEH D. CLINTON-JOHNSON..... ASSOCIATE JUSTICE
BEFORE HIS HONOR : BOAKAI N. KANNEH..... ASSOCIATE JUSTICE

The Republic of Liberia by and thru the Liberia Revenue)
Authority, represented by its Commissioner General,)
Hon. Dorbor Jallah of Paynesville City, Montserrado)
County Republic of LiberiaMovant)

Versus)

MOTION TO DISMISS
APPEAL

The Management of Comprehensive Reality Co.)
represented by its Manager, Assistant Manager, & all)
authorised officers of the aforesaid entity of Sinkor, 6th)
Street, back of Insurance Company of Africa , Monrovia,)
LiberiaRespondent)

GROWING OUT OF THE CASE:)

The Management of Comprehensive Reality Co.)
represented by its Manager, Assistant Manager, & all)
authorised officers of the aforesaid entity of Sinkor, 6th)
Street, back of Insurance Company of Africa , Monrovia,)
LiberiaRespondent)

Versus)

APPEAL

The Republic of Liberia by and thru the Liberia Revenue)
Authority, represented by its Commissioner General,)
Hon. Dorbor Jallah of Paynesville City, Montserrado)
County Republic of LiberiaMovant)

JUDGEMENT WITHOUT OPINION

When this case was called for hearing of this motion to dismiss appeal on October 20, 2025, Counsellor Aaron B. Kparkillen, Assistant Minister of Justice for Taxation, Counsellor Bruce Quaye, Acting General Counsel, Liberia Revenue Authority (LRA), and Counsellor Powel Duahn, Senior Legal Counsel, Liberia Revenue Authority (LRA), appeared for the movant. Counsellor Kpoto Kpadeh Gizzie appeared for the respondent.

The movant, Republic of Liberia, filed this motion to dismiss the appeal announced by the respondent in the Tax Court for Montserrado County, contending that respondent failed to transcribe the records of this case to the Supreme Court of Liberia consistent with law; *Civil Procedure Law* Rev. Code:2.51.11.

That on October 20, 2025, at the called of this case, and by leave of court, counsel for the respondent, Counsellor Kpoto Kpadeh Gizzie, submitted that he had earlier filed a notice of withdrawal from the case; hence, he no longer represents the respondent, which submission this Court denied and fined the respondent's counsel US\$200.00 (Two Hundred United States Dollars) and ordered him to file his responsive pleading within 24 hours.

That also on the same October 20, 2025, the Court having carefully examined the records, noticed the failure of the counsels for the movant to properly verify the motion to dismiss appeal; hence, this Court also fined the counsels for the movant the amount of US\$350.00 (Three Hundred Fifty United States Dollars) for their failure to properly verify and date the motion.

That subsequently thereafter on October 24, 2025, in compliance with the orders of this Court, the counsel for the respondent filed a six count response in which he conceded to the motion to dismiss the appeal in accordance with the provision of the law under chapter 51, section 51.11.

That on the 27th day of October 2025, during the hearing, the respondent's counsel made the following submission:

"The respondent's counsel begs to give notice to this Court that he concedes to the movant's motion, the same being sound in law, should be granted by this Honorable Court. And respectfully submits."

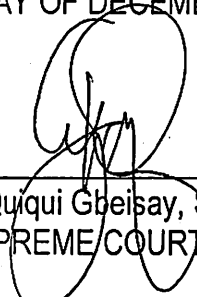
That the law in this jurisdiction provides that "all admissions made by a party himself or by his agent acting within the scope of his authority are admissible." *Civil Procedure*

Law, Rev. Code:1.25.8(1). Hence, the respondent's concession, being consistent with law, it is hereby

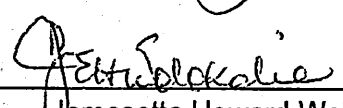
ADJUDGED:

That the motion to dismiss be, and the same is hereby granted and the appeal is hereby dismissed. The Clerk of this Court is ordered to send a mandate to the trial court commanding the judge presiding therein to resume jurisdiction over this cause and enforce its May 17, 2022 ruling. AND IT IS HEREBY SO ORDERED.

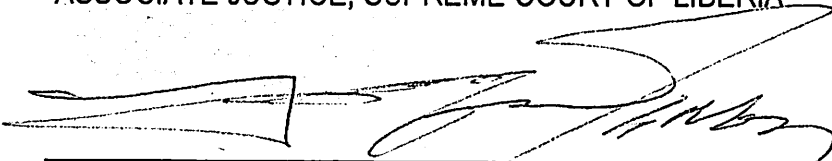
GIVEN UNDER OUR HANDS AND THE SEAL OF
THE HONOURABLE SUPREME COURT OF
LIBERIA THIS 18TH DAY OF DECEMBER, A.D. 2025



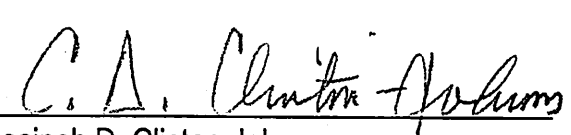
Yamie Quiqui Gbeisay, Sr.
CHIEF JUSTICE, SUPREME COURT OF LIBERIA



Jamesetta Howard Wolokolie
ASSOCIATE JUSTICE, SUPREME COURT OF LIBERIA



Yussif D. Kaba
ASSOCIATE JUSTICE, SUPREME COURT OF LIBERIA



Ceaneh D. Clinton-Johnson
ASSOCIATE JUSTICE, SUPREME COURT OF LIBERIA

Note: Mr. Justice Boakai N. Kanneh, having been out of the bailiwick of the Republic Liberia, due to illness, did not participate in the hearing and determination of this case; hence, he did not sign this Judgment.